CITY OF LEMON GROVE
MEASURE E

(This measure will appear on the ballot in the following form.)

MEASURE E

Shall the Measure restricting the sale of birds in the City of Lemon Grove, requiring that birds be obtained exclusively from animal shelters, humane societies, or nonprofit rescue organizations and establishing related regulations be adopted

This measure requires Simple Majority (50%+1) of those voting on the measure.

OFFICIAL TITLE AND BALLOT SUMMARY

BALLOT TITLE

An Initiative Measure restricting the sale of birds in the City of Lemon Grove, requiring that birds be obtained exclusively from animal shelters, humane societies, or nonprofit rescue organizations and establishing related regulations.

BALLOT SUMMARY

If approved, this Initiative Measure ("Initiative") adopts a local ordinance that restricts the sale of birds in the City of Lemon Grove ("City") by extending California's existing rescue-only model to the sale of birds in the City with the following key provisions:

1. **Adoption and Extension of State Rescue-Only Standards to Birds.** Consistent with California's rescue-only sourcing requirements for dogs, cats, and rabbits under California Health and Safety Code §122354.5, no pet store shall display, sell, deliver, offer for sale, barter, auction, give away, or otherwise transfer any bird within the City unless the bird was obtained from an animal shelter, animal control agency, humane society, or nonprofit rescue organization, and the pet store receives no direct or indirect compensation or financial benefit for such adoption.

2. **Exemptions.** This Initiative does not regulate poultry or birds sold for agricultural or backyard flock purposes.

This Initiative does not apply to a pet store that provides space and care for birds owned by an animal shelter, humane society, or nonprofit rescue organization for purposes of adoption.

This Initiative does not apply to: (A) a publicly operated animal control facility or animal shelter; (B) a private, charitable, nonprofit humane society or nonprofit animal rescue organization; (C) a publicly operated animal control agency, nonprofit humane society, or nonprofit animal rescue organization that operates out of or in connection with a pet store, provided the organization has obtained City approval and the activity is consistent with the intent and purpose of this Initiative.

3. **Enforcement and Penalties.** Each bird sold, displayed, or offered in violation of this Initiative constitutes a separate offense punishable as an infraction and enforceable by the City.

4. **Effective Date.** This Initiative will become effective immediately upon adoption and enforceable six (6) months after adoption.

CITY ATTORNEY IMPARTIAL ANALYSIS OF MEASURE E

Under California Health and Safety Code section 122354.5, retail pet stores are barred from selling dogs, cats, and rabbits unless sourced from a qualified animal shelter, humane society, or non-profit rescue organization.

If approved, Measure E would adopt Health and Safety Code section 122354.5 and extend those provisions to the retail sale of birds in the City of Lemon Grove. The Measure becomes effective immediately upon adoption and enforceable six months after its adoption.

If adopted, the Measure would amend Lemon Grove Municipal Code Chapter 6.10, adding sections 6.10.001-6.10.060 restricting retail pet stores from displaying, selling, delivering, offering for sale, bartering, auctioning, giving away, or otherwise transferring any bird within the City of Lemon Grove unless the bird was obtained from an animal shelter, animal control agency, humane society, or nonprofit rescue organization, and the pet store receives no direct or indirect compensation or financial benefit for such adoption.

Under the Measure, pet stores will be entitled to provide space and care for birds owned by an animal shelter, humane society, or nonprofit rescue organization for purposes of adoption.

The Measure does not extend to poultry sold for agricultural or backyard flock purposes, including chickens, ducks, geese, or turkeys.

Violations carry civil penalties (per animal) and violations may be punishable as an infraction.

The Measure would take effect only if approved by a simple majority (50% plus one) of the voters casting votes on it. If approved, it would be adopted as an ordinance of the People of the City of Lemon Grove, and the Mayor and City Clerk would attest to its passage upon certification of the election results.

If the measure is not approved, it would not take effect and existing State Law regarding rescue-only pet store standards for dogs, cats and rabbits would continue to be enforceable.

Measure E has been placed on the ballot because the City received a petition signed by the requisite number of voters seeking the adoption of rescue-only pet store standards for birds.

A **"YES"** vote is a vote to adopt the ordinance.

A **"NO"** vote is a vote against adopting the ordinance.

The above statement is an impartial analysis of Measure E. If you desire a copy of the ordinance or measure, please call the elections official's office at 619-825-3841 and a copy will be mailed at no cost to you.

Kristen S. Steinke
City Attorney
City of Lemon Grove